



CHAPTER 6.

An Act to extend section forty-seven of the Workmen's Compensation Act, 1925, to workmen suffering from pneumoconiosis and to provide for the payment of benefit in the case of such workmen; to enable the Treasury to contribute to certain medical expenses; to amend certain provisions of the Coal Mines Act, 1911, relating to siliceous rock; to amend the provisions of the Workmen's Compensation Acts, 1925 to 1941, relating to certain dependants, to payments in the case of incapacity, to examining surgeons and to the making of rules of court; to provide for the repayment of certain sums paid to dependants of seamen by the Minister of Pensions; and for purposes connected with the matters aforesaid.

[4th February 1943.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Section forty-seven of the Workmen's Compensation Act, 1925 (which as amended by the Workmen's Compensation (Silicosis and Asbestosis) Act, 1930, provides for the making of schemes applying that Act to workmen suffering from fibrosis of the lungs due to silica dust or asbestos dust) shall extend to workmen suffering from any form of pneumoconiosis; and accordingly the amendments specified in the second column of the Schedule to this Act shall be made in the provisions of the said section as so amended and of section two of the Workmen's Compensation (Silicosis and Asbestosis) Act, 1930, mentioned in the first column of that Schedule.

Extension of
s. 47 of
Workmen's
Compensation
Act, 1925, to
workmen
suffering from
any form of
pneumo-
coniosis.
15 & 16 Geo. 5.
c. 84.
20 & 21 Geo. 5.
c. 29.

(2) In this Act, the expression "pneumoconiosis" means fibrosis of the lungs due to silica dust, asbestos dust or other dust, and includes the condition of the lungs known as dust-reticulation.

(3) This section shall not affect the validity of any scheme made under the said section forty-seven or the said section two which is in force at the passing of this Act, and any such scheme made under the said section forty-seven shall have effect as if it had been made under that section as amended by the Schedule to this Act, and any scheme made under the said section two shall, pending any extension thereof in consequence of the passing of this section, have effect as if this section had not passed.

Benefit scheme
for workmen
formerly
employed in
coal mining
industry and
suffering from
pneumo-
coniosis.

2.—(1) The Secretary of State may by scheme (in this section referred to as "the benefit scheme") provide for the payment of benefit at a rate prescribed by the benefit scheme, out of a fund established under the benefit scheme, in the case of workmen not entitled to compensation under any scheme made under the said section forty-seven as amended by the Workmen's Compensation (Silicosis and Asbestosis) Act, 1930, and this Act, who are certified in such manner as may be prescribed by the benefit scheme—

- (a) to have been employed in or about a coal mine on or after the twenty-second day of October, nineteen hundred and thirty-four, but not after such date as may be specified in the benefit scheme; and
- (b) to have been totally disabled at the date so specified, or to have become totally disabled or to have died after that date, as the result of any form of pneumoconiosis or of any form of pneumoconiosis accompanied by tuberculosis:

Provided that benefit shall not be payable as aforesaid in any case where the total disablement of the workman or, if he died without previous total disablement, his death took place more than five years after the date so specified.

(2) Any benefit payable under the benefit scheme shall be in addition to any benefit payable under the National Health Insurance Acts, 1936 to 1941.

(3) The benefit scheme may make provision—

- (a) for setting up an administrative board to administer the scheme and to settle claims and other matters arising thereunder and for the duties, powers and procedure of that board;
- (b) for the establishment of a fund to be administered by the administrative board or otherwise as may be provided by the scheme;

(c) for requiring such payments as may be prescribed by the Minister of Fuel and Power to be paid to him, at such times and in such manner as may be so prescribed, by employers of workmen employed in or about a coal mine, and for the recovery of those payments in such manner as may be so prescribed; for the payment into the said fund of any sums paid to or recovered by the Minister of Fuel and Power as aforesaid; and for the payment and recovery out of the said fund of benefits payable under the scheme, and of any expenses arising under the scheme which are directed by the scheme to be so paid;

(d) for winding up the said fund, when in the opinion of the Secretary of State it is no longer required for the purpose for which it was established, and for the payment of any balance standing to the credit of the said fund into the fund constituted under section twenty of the Mining Industry Act, 1920; and

(e) generally for such further or supplemental matters as appear necessary for giving full effect to the scheme.

10 & 11 Geo. 5.
c. 50.

(4) Any payments made by the employer of workmen employed in or about a coal mine under the benefit scheme shall be defrayed as part of the working expenses of the mine, and any sums paid under the benefit scheme into the fund constituted under section twenty of the Mining Industry Act, 1920, shall not be required to be allocated for the benefit of particular districts.

(5) The Minister of Fuel and Power may, with the consent of the Treasury, advance to the administrative board out of moneys provided by Parliament such sums as the board may require for the purposes of the scheme pending the collection of payments from employers under the scheme, and may retain out of those payments and pay into the Exchequer such sums as may be necessary to repay any such advance.

(6) The powers conferred on the Secretary of State by section two of the Workmen's Compensation (Silicosis and Asbestosis) Act, 1930, to make a general scheme applicable to all industries and processes to which compensation schemes apply, for the purpose of co-ordinating the medical arrangements necessary in connection with those compensation schemes, shall include power to extend any such general scheme so as to make provision for the medical arrangements necessary in connection with the benefit scheme.

(7) In this section the expression "coal mine" has the meaning assigned to it by section six of the Workmen's Compensation 24 & 25 Geo. 5 (Coal Mines) Act, 1934, except that it does not include any open c. 23. working.

(8) A scheme made under this section may be extended or varied by a subsequent scheme made thereunder, but any such scheme shall be laid before each House of Parliament forthwith, and if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-one days on which that House sits after any such scheme is laid before it, praying that the scheme may be annulled, His Majesty in Council may annul the scheme and it shall thenceforward be void, but without prejudice to the validity of anything done thereunder.

56 & 57 Vict.
c. 66.

(9) Section one of the Rules Publication Act, 1893, shall not apply to any scheme made under this section.

Contributions
to medical
expenses
fund.

3. The Secretary of State may, with the approval of the Treasury, make out of moneys provided by Parliament such contributions as he thinks fit to any medical expenses fund established by a general scheme made under the powers conferred by section two of the Workmen's Compensation (Silicosis and Asbestosis) Act, 1930, as extended by this Act.

Power to
regulate
drilling of
siliceous rock.
1 & 2 Geo. 5.
c. 50.

4. General and special regulations made under sections eighty-six and eighty-seven respectively, of the Coal Mines Act, 1911, may vary, amend or replace the provisions of section seventy-eight of the said Act (which requires the use of sprays when drilling siliceous rock).

Power to
disregard
earnings of
widow in
respect of
war work.

5.—(1) Where, in the case of an injury to a workman resulting in death, the widow of the workman claims compensation under the Workmen's Compensation Acts, 1925 to 1943, or under any scheme made under the said Acts, and the tribunal by whom the claim is dealt with—

(a) is satisfied that any earnings of the widow were in respect of employment which she entered into on or after the third day of September, nineteen hundred and thirty-nine, and would not have entered into but for the war; and

(b) is of opinion that, if she had not entered into the said employment, she would have been dependent either wholly or partly upon the earnings of the workman at the time of his death, or would but for the incapacity due to the accident have been so dependent;

the tribunal shall disregard those earnings, either wholly or to such extent as the tribunal thinks proper, and accordingly may treat the widow as wholly or partly dependent upon the earnings of the workman at the time of his death.

(2) Where, in any such case, a female member of the workman's family other than his widow claims compensation as aforesaid, the tribunal by whom the claim is dealt with shall treat her, for the purposes of the last foregoing subsection, as if

she were the widow of the workman, if the tribunal is satisfied that—

- (a) she was acting as housekeeper to the workman at the time of his death (otherwise than in a temporary capacity by reason of the accident); or
- (b) she was acting as housekeeper to the workman at the time when she entered into the employment in question and would have been so acting at the time of the workman's death if she had not entered into the said employment.

(3) In this section, any reference to the tribunal by whom a claim is dealt with shall be construed as a reference to the county court judge, arbitrator, committee or board by whom the claim is settled or to the registrar or county court judge exercising powers under section twenty-five of the Workmen's Compensation Act, 1925, in relation to any agreement for the settlement of the claim, and the expression "the war" means any war in which His Majesty is engaged.

(4) This section shall not apply to any deaths taking place before the passing of this Act, and shall expire on such date as His Majesty may by Order in Council appoint, but without prejudice to anything previously done thereunder.

6.—(1) For the purpose of calculating—

- (a) any weekly payment payable under the Workmen's Compensation Acts, 1925 to 1943, or under any scheme made under those Acts, for total or partial incapacity, or
- (b) any supplementary allowances payable in respect of any such weekly payment or the total amount of the supplementary allowances payable in respect of any such weekly payment,

Calculation
of weekly
payments in
case of changes
in rates of
remuneration.

the average weekly earnings of the workman before the accident shall, if and whenever a change occurs after the date of the accident in the rates of remuneration obtaining in the class of employment in which the workman was employed during the relevant period before the accident, be deemed, so long as the changed rates obtain without further change, to be the average weekly earnings which he would have earned during that period if the changed rates had obtained throughout that period.

(2) For the purpose of calculating any such weekly payment or supplementary allowances as aforesaid, the average weekly earnings of the workman before the accident shall, if any change or changes occurred in the relevant period before the accident in the rates of remuneration obtaining in the class of employment in which the workman was employed during that period, be

deemed, subject to the last foregoing subsection, to be the average weekly earnings which he would have earned during that period if the rates obtaining at the date of the accident had obtained throughout that period.

(3) Where any such weekly payment has been increased under subsection (2) of section eleven of the Workmen's Compensation Act, 1925, or under that subsection as applied by any such scheme as aforesaid, and, on any subsequent review of the weekly payment, it appears to the tribunal that any material change in rates of remuneration has occurred since the date when the weekly payment was so increased or (if it has been varied under this subsection) since the date of the last such variation, and that the amount of the weekly payment would have been fixed at that date at a higher or lower figure if the rates of remuneration obtaining at the date of the subsequent review had obtained at the date aforesaid, the tribunal may (subject to the maximum provided in section nine of the said Act) make such increase or reduction of the weekly payment and of any supplementary allowances payable in respect thereof as, having regard to the said change in rates of remuneration and any other material change of circumstances, the tribunal thinks proper.

(4) In this section the expression "the relevant period" means, in relation to any accident, the period before the accident by reference to which the average weekly earnings of the workman are calculated under sections nine and ten of the Workmen's Compensation Act, 1925, and the expression "the tribunal" means, in relation to any weekly payment, the county court judge, arbitrator, committee or board by whom any review of the payment is, in default of agreement, carried out.

(5) This section shall extend to cases where the accident took place before the passing of this Act and to changes in rates of remuneration occurring before the passing of this Act:

Provided that this section shall not affect the amount of any weekly payment payable in respect of any week commencing before the passing of this Act.

(6) Subsection (3) of section eleven of the Workmen's Compensation Act, 1925, shall cease to have effect, but without prejudice to anything done thereunder before the passing of this Act.

3 & 4 Geo. 6.
c. 47.

(7) Section five of the Workmen's Compensation (Supplementary Allowances) Act, 1940 (which enables the Registrar of Friendly Societies to amend schemes certified by him under section thirty-one of the Workmen's Compensation Act, 1925), shall apply in relation to the provisions of this section in like manner as it applies in relation to the provisions of that Act.

7. In such cases and subject to such conditions as the Secretary of State may direct, the powers and duties under Part II of the Workmen's Compensation Act, 1925, of the examining surgeon for the district in which a workman is employed may be exercised and performed by the examining surgeon for the district where the workman resides or to which he has been removed for medical treatment.

8.—(1) In subsection (2) of section twenty-seven of the Workmen's Compensation Act, 1925, for the words from "and such rules may, in England," to the end of the subsection, there shall be substituted the words "and such rules shall, in England, be made by the rule committee appointed under section ninety-nine of the County Courts Act, 1934, and in the manner provided in that section, except that no such rules shall be subject to the concurrence of the authority for the time being empowered to make rules of court under the Supreme Court of Judicature (Consolidation) Act, 1925".

Amendment
of s. 27 of
Workmen's
Compensation
Act, 1925.
24 & 25 Geo. 5.
c. 53.
15 & 16 Geo. 5.
c. 49.

(2) At the end of section two of the Administration of Justice (Emergency Provisions) Act, 1939, the following subsection shall be added:—

2 & 3 Geo. 6.
c. 78.

"(3) The power of making rules of court under subsection (2) of section twenty-seven of the Workmen's Compensation Act, 1925, as amended by any subsequent enactment, shall be exercised by the Lord Chancellor instead of being exercised in the manner provided in the said subsection."

(3) Nothing in this section shall affect any rules of court made under subsection (2) of the said section twenty-seven which are in force at the date of the passing of this Act, and any such rules shall (subject to the power of amendment and revocation) continue in force.

9.—(1) Where, on the death of a person to whom section three or section four of the Pensions (Navy, Army, Air Force and Mercantile Marine) Act, 1939, as amended by the Pensions (Mercantile Marine) Act, 1942, applies—

Power
to deduct
or repay out
of workmen's
compensation
provisional
payments
made by
Minister of
Pensions to
dependants of
seamen.

- (a) compensation is payable under the Workmen's Compensation Acts, 1925 to 1943, to or in respect of the dependants of that person and is required to be paid into the court under section twenty-six of the Workmen's Compensation Act, 1925; and
- (b) the Minister of Pensions has, before it was decided that no pension or other grant was payable under a scheme made under either of the said sections, made provisional payments to or in respect of those dependants;

2 & 3 Geo. 6.
c. 83.
5 & 6 Geo. 6.
c. 26.

the amount of the said payments, if and so far as they have been repaid to the Minister by the person liable for the said compensation, shall be deducted from the amount required to be paid into court, and, if and in so far as they have not been so repaid, shall be ordered by the county court to be paid to the Minister out of the money paid into court, and the person liable for the said compensation shall, as respects the amount of the said payments, be deemed to have discharged his liability for compensation.

(2) A certificate issued by the Minister of Pensions stating that—

- (a) a person of the name and description specified in the certificate is a person to whom the said section three or the said section four of the Pensions (Navy, Army, Air Force and Mercantile Marine) Act, 1939, as so amended, applies; and
- (b) the said Minister has made such provisional payments as aforesaid of the amount specified in the certificate to or in respect of the dependants of that person; and
- (c) the person liable for the said compensation has repaid to the Minister the said payments to such extent (if any) as may be so specified,

shall be conclusive evidence of the matter referred to in paragraph (a) hereof and shall be sufficient evidence of the matters referred to in paragraphs (b) and (c) hereof, until the contrary is proved.

Short title,
citation and
construction.

10. This Act may be cited as the Workmen's Compensation Act, 1943, and the provisions of this Act except sections two and four thereof shall be construed as one with the Workmen's Compensation Act, 1925, and the Workmen's Compensation Acts, 1925 to 1941, and the said provisions of this Act may be cited together as the Workmen's Compensation Acts, 1925 to 1943; and the Coal Mines Acts, 1887 to 1937, and section four of this Act may be cited together as the Coal Mines Acts, 1887 to 1943.

SCHEDULE.

Amendments of section forty-seven of the Workmen's Compensation Act, 1925, and section two of the Workmen's Compensation (Silicosis and Asbestosis) Act, 1930.

Provisions to
be amended.

Amendment.

S. 47 of the Workmen's Compensation Act, 1925.

Subsection (1) - After the words "silica dust or asbestos dust" there shall be inserted the words "or other dust"; in paragraph (a) of that subsection for the words "the disease known as 'silicosis' (that is to say, fibrosis of the lungs due to silica dust) or from fibrosis of the lungs due to asbestos dust or from either of those diseases" there shall be substituted the words "pneumoconiosis or from pneumoconiosis", and in paragraph (b) of that subsection for the words "silicosis, or from fibrosis of the lungs due to asbestos dust or from either of those diseases" there shall be substituted the words "pneumoconiosis or from pneumoconiosis".

Subsection (2) - For the words "silicosis or fibrosis of the lungs due to asbestos dust, or from either of those diseases" there shall be substituted the words "pneumoconiosis or to pneumoconiosis".

Subsection (3) - In paragraph (e) thereof, after the words "asbestos dust", where they first occur, there shall be inserted the words "or to other dust"; and for the words "silicosis or fibrosis of the lungs due to asbestos dust, or from either of those diseases" there shall be substituted the words "pneumoconiosis or from pneumoconiosis".

After subsection (3) the following subsection shall be inserted:—

"(3A) Different schemes may be made under this section with respect to different forms of pneumoconiosis as well as with respect to different industries or processes or groups of industries or processes."

S.2 of the Workmen's Compensation (Silicosis and Asbestosis) Act, 1930.

Subsection (1) - In paragraph (d) thereof, after the words "asbestos dust" in both places where they occur there shall be inserted the words "or other dust".

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Sir NORMAN GIBB SCORGIE, C.V.O., C.B.E., Controller of His Majesty's Stationery Office
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